Supreme Court, U.S.
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No. 98-1811

In The
SUPREME COURT OF THE UNITED STATES
October Term, 1998

ALEXIS GEIER, et al.,

Petitioners,

v.

AMERICAN HONDA MOTOR CO., INC., et al.,

Respondents.

On Petition for a Writ of Certiorari To The United States Court of Appeals For the District of Columbia Circuit

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RESPONDENTS' BRIEF IN OPPOSITION TO PETITION FOR WRIT OF CERTIORARI

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QUESTION PRESENTED

Whether this Court should review a decision of the United States Court of Appeals for the District of Columbia Circuit which concluded that petitioners' tort claim, that respondents' 1987-model automobile was defectively designed because it was not equipped with an airbag, was impliedly preempted by the National Traffic and Motor Vehicle Safety Act of 1966.

RULE 29.6 STATEMENT

American Honda Motor Co., Inc.

Calhac, Inc.
American Honda Finance Corp.
- American Honda Insurance Services, Inc.
- American Honda Receivables Corp.
- American Honda Service Contract Corporation
- Honda Canada Finance, Inc.

Honda of America Mfg., Inc.
- Benton Water Supply, Inc.
- Honda of America Foundation
- Honda De Mexico S.A. De C.V.

Honda Power Equipment Mfg., Inc.
Honda Performance Development, Inc.
Honda Transmission Mfg. of America, Inc.
Honda South Carolina Mfg., Inc.

Honda Motor Co., Ltd.

Japan
- Honda R&D Co., Ltd.
- Honda Engineering Co., Ltd.
- Hadsky, Inc.
- Yutaka Giken Co., Ltd.
- Honda Foundry Co., Ltd.
- Asamagiken Co., Ltd.
- Honda Lock Mfg., Co., Ltd.
- Honda Access Sales Corp.
- Honda Motor Parts Service Co., Ltd.
- Honda Access Corp.
- Honda Parts Sales Co., Ltd.
- Honda Finance Co., Ltd.
- Suzuka Circuitland Co., Ltd.
- Honda Trading Corporation
- Honda Leasing Corporation

- Honda Sogo Tatempno Corp., Ltd.
- Honda Verno Shin Tokyo Co., Ltd.
- Twin Ring Motegi Co., Ltd.

North America
- American Honda Motor Co., Inc.
- Honda North America, Inc.
- Honda of America Mfg., Inc.
- American Honda Finance Corp.
- Honda R&D North America, Inc.
- Honda Canada Inc.

Europe
- Honda Austria G.m.b.H.
- Honda Europe N.V.
- Honda Belgium N.V.
- Honda Motor Europe Limited
- Honda France S.A.
- Honda Deutschland G.m.b.H.
- Honda Nederland B.V.
- Honda International Finance B.V.
- Honda Italia Industriale-S.p.A.
- Honda Automobili Italia S.p.A.
- Honda Automovel de Portugal S.A.
- Honda Motor de Portugal, S.A.
- Honda Automoviles Espana, S.A.
- Montesa Honda S.A.
- Honda (Suisse) S.A.
- Svenko Honda Bil Import A.B.

Rest of the World
- P.T. Honda Prospect Engine Manufacturing
- P.T. Honda Federal Inc.
- Asian Honda Motor Co., Ltd.
- Thai Honda Manufacturing Co., Ltd.

Honda Motor do Brasil Ltda.
Honda de Mexico, S.A. de C.V.
Honda Australia Pty., Ltd.
Honda New Zealand Limited
Honda-Mindong Generator Co., Ltd.
Honda S. (a) Cars India Ltd.
Kinetic Honda Motor Ltd.
P.T. Honda Prospect Engine Manufacturing
Honda Auto Parts Mfg. (M) Sdn. Bhd.
Honda Atlas Cars (Pakistan) Ltd.
Honda Philippines Inc.
Honda Engine Mfg. Philippines Inc.
Honda Parts Manufacturing Corp.
Honda Cars Manufacturing (Thailand) Co., Ltd.
Thai Honda Manufacturing Co., Ltd.
Honda Vietnam Co., Ltd.
Honda Gulf Pze.
Honda Anadolu Motorslklet Uretim Ve Pazarlama A.S.
Honda Motor De Argentina S.A.
Honda Del Peru S.A.

Honda of American Mfg., Inc.

Benton Water Supply, Inc.
Honda of America Foundation
Honda De Mexico S.A. De C.V.

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RESPONDENTS' BRIEF IN OPPOSITION

Joining five other circuit courts, the District of Columbia Circuit Court of Appeals concluded that petitioners' no-airbag tort claim was impliedly preempted by federal law because such tort claims conflict with the method chosen by the federal government to achieve the goals of the National Traffic and Motor Vehicle Safety Act of 1966 ("the

Safety Act"). In particular, the Court of Appeals carefully reviewed the federal regulatory scheme, and recognized that common law no-airbag tort claims would frustrate the federal government's policy of encouraging (1) public acceptance of airbags, and (2) "experimentation with better passive restraint systems." App. 15. The Court of Appeals correctly concluded that a no-airbag claim is preempted because the Department of Transportation specifically determined that "an all airbag rule would disserve the safety purposes of the Act," and that this policy "would be disrupted by tort liability." App. 16. Moreover, the Court of Appeals correctly followed and applied controlling Supreme Court precedents governing federal preemption of state claims. Since this Court has repeatedly denied petitions for writs of certiorari on this precise issue, including as recently as last year, there is no reason for this Court to now exercise its discretionary powers in this case. See e.g. Irving v. Mazda Motor Corp., 136 F.3d 764 (11th Cir. 1998), cert. denied, 119 S. Ct. 544 (1998). Moreover, this case is not the right vehicle to resolve the FMVSS preemption issue inasmuch as the Court of Appeals never reached express preemption -- thus, a ruling in this Court could not resolve the entire preemption issue. Finally, changes in the law since the subject 1987 Honda Accord was manufactured require airbags in all new passenger cars beginning September 1, 1997; therefore, this Court need not expend its judicial resources on this issue of diminishing importance.

STATEMENT OF THE CASE

A. Factual and Procedural Background

This personal injury action arises out of a single vehicle accident that occurred on January 16, 1992, at approximately 10:30 p.m. in the 4900 block of MacArthur Boulevard, N.W. in Washington, D.C. Petitioner Alexis

Geier, then 17 years old, was the driver of the vehicle, a 1987 Honda Accord LX, manufactured on July 28, 1987. Ms. Geier lost control of the vehicle after rounding a curve on MacArthur Boulevard and crashed head-on into a large tree just off the right side of the road.

In compliance with Federal Motor Vehicle Safety Standard ("FMVSS") 208 (49 C.F.R. § 571.208) in 1987, which provided manufacturers with an affirmative option to install any one of three different restraint systems, the Honda Accord was equipped with manual three-point lap and shoulder belts with a belt warning, i.e., a red light on the dash that indicated that the seat belt should be fastened.

Petitioners' complaint was filed on January 12, 1995 in the United States District Court for the District of Columbia against American Honda Motor Co., Inc., Honda of America Mfg., Inc. and Honda Motor Co., Ltd. (collectively "Honda"). The complaint asserted theories of strict products liability and breach of warranty. The sole claim is that the 1987 Honda Accord was defectively designed because it was not equipped with a driver's side air bag.

On October 26, 1995, Honda moved for summary judgment on the ground that the petitioners' common-law tort claim was expressly and impliedly preempted by the Safety Act and FMVSS 208. On December 10, 1997, Senior Judge William B. Bryant granted Honda's motion for summary judgment, and ruled that petitioners' no airbag claim was expressly preempted by federal law. The District Court found that the issues raised were not "novel," and recognized that "the federal circuit courts have unanimously concluded that a cause of action for negligence based on the failure of a car manufacturer to install airbags during the 1980s is pre-empted by federal law." App. 17-18. The District Court found that recovery on tort claims, such as that

asserted by plaintiffs, is equivalent to a safety standard promulgated by the state legislature, and such a claim is preempted by section 1392(d) of the Safety Act and FMVSS 208 because "the Federal Government has weighed the competing interests..., reached an unambiguous conclusion about how those competing interests should be resolved..., and implemented that conclusion via a specific mandate on manufacturers or producers." App. 18-19.

The Court of Appeals unanimously affirmed, holding: "Joining our sister circuits, we affirm, concluding that Geier's lawsuit is implicitly preempted." App. 2. The Court of Appeals declined to decide the express preemption question "because we conclude that a verdict in [petitioners'] favor would stand as an obstacle to the federal government's chosen method of achieving the Act's Safety objectives, and consequently, the Act implicitly preempts [petitioners'] lawsuit." App. 12.

The Court of Appeals rejected petitioners' claim that courts cannot reach implied preemption when there is an express preemption provision, relying on this Court's decision in Freightliner Corp. v. Myrick, 514 U.S. 280 (1995). The Court of Appeals, after reviewing the regulatory history, concluded that "allowing design defect claims based on the absence of an airbag for the model-year car at issue would frustrate the Department [of Transportation's] policy of encouraging both public acceptance of the airbag technology and experimentation with better passive restraint systems. Even if the Secretary's gradual adoption of an airbag requirement has increased public acceptance of the technology over time, concerns about public reaction still existed when Geier's 1987 Honda was manufactured." App. 15-16. Therefore, the Court held "because potential common law liability interferes with the regulatory methods chosen by the federal government to achieve the Safety Act's stated goals,...Geier's lawsuit claiming that the car she was

driving was defectively designed because it lacked airbags is implicitly preempted." App. 16.

B. The Safety Act and FMVSS 208

In 1966, Congress determined that, given the "centralized, mass production, high volume character of the motor vehicle manufacturing industry in the United States," the country needed motor vehicle safety standards that were "strong and adequately enforced" and "uniform throughout the country." S. Rep. No. 1301, 89th Cong., 2d Sess., 12, reprinted in 1966 U.S. Code Cong. & Ad. News 2709; see H.R. Rep. No. 1776, 89th Cong., 2d Sess., 17 (1966). Therefore, Congress concluded that "the primary responsibility for regulating the national automotive manufacturing industry must fall squarely upon the Federal Government." S. Rep. No. 1301, 89th Cong., 2d Sess. 4, reprinted in 1966 U.S. Code Cong. & Ad. News 2709, 2712.

Accordingly, in 1966, Congress enacted the National Traffic and Motor Vehicle Safety Act, 15 U.S.C. § 1381 et seq. ("Safety Act") (now 49 U.S.C. § 30101 et seq.). The Safety Act directs the Department of Transportation, through the National Highway Traffic Safety Administration ("NHTSA"), to issue federal motor vehicle safety standards that are "practicable," that "meet the need for motor vehicle safety," and apply throughout the country. 15 U.S.C. § 1392(a) (now 49 U.S.C. § 30111(a)). Federal motor vehicle safety standards must "protect against unreasonable risk of death or injury" in the event of an accident. 15 U.S.C. § 1391(1) (now 49 U.S.C. § 30102(a)(8)).

To ensure that the federal standards will not be undermined by application of a variety of state standards addressing the same features, Congress expressly preempted all non-identical state standards:

Supremacy of Federal standards...

> Whenever a Federal motor vehicle safety standard established under the subchapter is in effect, no State or political subdivision of a State shall have any authority either to establish, or to continue in effect, with respect to any motor vehicle or item of motor vehicle equipment, any safety standard applicable to the same aspect of performance of such vehicle or item of equipment which is not identical to the Federal standard...

See 15 U.S.C. § 1392(d) (now 49 U.S.C. § 30103(b)). Explaining the need for this preemption, the House Report emphasized:

> [T]his preemption subsection is intended to result in uniformity of standards so that the public as well as industry will be guided by one set of criteria rather than a multiplicity of diverse standards.

H.R. Rep. No. 1776, 89th Cong., 2d Sess., 17 (1966). The Senate Report stated that inconsistent standards are "preempted." S. Rep. No. 1301, 89th Cong., 2d Sess., 12 (1966).

The Safety Act also contains a provision which makes clear that Congress did not intend to occupy the entire field of automotive safety (see 15 U.S.C. § 1397(k) [currently codified at 49 U.S.C. § 30103(e)]). As the Senate Report explained, this clause ensured that "compliance with such (federal) standards would thus not necessarily shield any person from product liability at common law." S. Rep. No. 1301, 89th Cong., 2d Sess. 11, reprinted in 1966 U.S. Code Cong. & Ad. News (1966) (emphasis added). The

House Report also focused on compliance and defenses, not preemption ["compliance with safety standards is not to be a defense or otherwise to affect the rights of parties under common law particularly those relating to warranty, contract and tort liability"]. H.R. Rep. No. 1776, 89th Cong., 2d Sess. 24 (1966). The role of § 1397(k) was not to negate preemption, but, as indicated in the Congressional debate, related to the evidentiary considerations of compliance with a safety standard. See 112 Cong. Rec. 21,490 (1966). Senator Cotton stated that "compliance with Federal standards may be offered in any proceeding for such relevance and weight as courts and juries may give it." 112 Cong. Rec. at 21,490 (1966). Senator Magnuson made the point that "[n]o court rules of evidence are intended to be altered by this provision." 112 Cong. Rec. at 21,487 (1966).[1]

In exercising the Secretary of Transportation's authority under the Safety Act, the National Highway Traffic Safety Administration ("NHTSA") has promulgated numerous standards on motor vehicle design and performance. FMVSS 208, the occupant restraint standard, addresses the "requirements for the protection of vehicle occupants in crashes." 49 C.F.R. § 571. 208, S1. Its stated purpose is "to reduce the number of deaths of vehicle occupants, and the severity of injuries by specifying vehicle crashworthiness requirements in terms of forces and accelerations measured on anthropomorphic dummies in test

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[1] When Congress recodified the Safety Act in 1994, both § 1392(d) and § 1397(k) were appropriately placed in a new section, 49 U.S.C. § 30103, entitled "Relationship to other laws." Significantly, however, § 1392(d) was placed in 49 U.S.C. § 30103(b), labeled "Preemption," whereas § 1397(k) was placed in an entirely different subsection, 49 U.S.C. 30103(e), whose title ("Common law liability") makes no reference to the Supremacy Clause or federal preemption. See Pub. L. 103-272, § 1(e), 108 Stat. 943. Since the petitioners and the Court of Appeals used the original statutory designations, we use them as well.

crashes, and by specifying equipment requirements for active and passive restraint systems." 49 C.F.R. § 571.208, S1.[2]

NHTSA first adopted FMVSS 208 in 1967, and required installation of manual lap belts in all new cars. 32 Fed. Reg. 2415 (1967). The decision whether and when to require the installation of passive restraints, including automatic seat belts and airbags, has been the subject of extensive study, controversy, and modifications over the last three decades by NHTSA and Congress. See Motor Vehicle Mfrs. Ass'n. v. State Farm Mut. Auto. Ins. Co., 463 U.S. 29 (1983); State Farm Mut. Auto. Ins. Co. v. Dole, 802 F.2d 474 (D.C. Cir. 1986), cert. denied, 480 U.S. 951 (1987).

In 1972, the Department of Transportation amended FMVSS 208 to require installation of passive restraints (air bags or automatic seat belts) for automobile manufactured after August 15, 1975. 37 Fed. Reg. 3911 (1972). For models built before that date, manufacturers could use manual lap and shoulder belts coupled with an ignition interlock.

That standard had a short life. The public did not like ignition interlocks and made it known. Thereafter, in 1974, Congress abolished the "ignition interlock" standard. Congress also prohibited the Secretary of Transportation from issuing any standard requiring air bags or any other non-belt restraint system, among other things, unless the standard was submitted first to both houses of Congress and not disapproved by them. 15 U.S.C. § 1410(b), (c).

Thereafter, every Secretary of the Department of Transportation rejected a mandatory air bag rule. In 1976,

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[2] "Passive" restraints are "devices that do not depend for their effectiveness upon any action taken by the occupant except that necessary to operate the vehicle." Motor Vehicle Mfrs. Ass'n v. State Farm Mut. Auto Ins. Co., 463 U.S. 29, 34-35 (1983).

Secretary Coleman declined to issue a standard requiring air bags. He determined that air bags were very costly and might "cause or exacerbate injuries;" the public did not like or want them; they might precipitate "disastrous economic consequences for the whole nation;" and they provided no greater protection than seat belts when used. "The Secretary's Decision Concerning Vehicle Occupant Crash Protection," D.O.T. (Dec. 6, 1976), at 11-12, 32; 41 Fed. Reg. 24071 (June 14, 1976).

In 1977, Secretary Adams also rejected an air bags only standard. He did issue a new FMVSS 208 requiring passive restraints, either air bags or automatic belts, to be phased into automobiles in 1981. He determined not to mandate passive restraints earlier, particularly air bags, because "half of the new cars" to be manufactured in the 1980s would have to be "completely redesigned" to accommodate them. 42 Fed. Reg. 34295 (July 5, 1977).

In 1981, Secretary Lewis delayed Secretary Adams' prospective passive restraint standard, and then rescinded it. 46 Fed. Reg. 53419 (1981). The Secretary stated:

> The agency is also seriously concerned about the possibility that adverse public reaction to the cost and presence of automatic restraints could have a significant adverse effect on present and future acceptance of highway safety efforts. Id.

In 1983, this Court vacated Secretary Lewis' rescission decision, because the Secretary had not adequately set forth the reasons for it. This Court, therefore, remanded to the Secretary. See Motor Vehicle Mfrs. Ass'n. v. State Farm Mut. Auto. Ins. Co., 463 U.S. 29 (1983).

Thereafter, Secretary Dole undertook "a thorough review" of all restraint systems, 49 Fed. Reg. 28962 (July 17,

1984), and reached a "final decision" respecting passive restraints. She determined to require a phase-in of them, but the phase-in was not to begin if states with two-thirds of the population enacted mandatory use laws ("MULS") by 1989.

The 1984 regulation provided a three-year lead time and phase-in to allow manufacturers an opportunity to provide more reliable automatic systems, and to permit consumers the opportunity to develop more information about the benefits of these systems. 49 Fed. Reg. at 29000. The phase-in schedule required a minimum of 10% of the 1987 model year cars manufactured after September 1, 1986 to use some type of automatic protection, but not necessarily airbags, 25% of the 1988 model year cars, 40% of the 1989 model year cars, and 100% of cars from the 1990 model year and later. Id. at 28999. "By starting off with a relatively small percentage and building up to full compliance, the phase-in will provide the manufacturers with a better opportunity to manage unforeseen development and production problems and, as a result, also make it less likely that consumers will develop adverse impressions based upon earlier experience." Id. at 29000. Secretary Dole explained that the phase-in was necessary because of "the need for the public to become accustomed to the technology and the need for protection, and [because] an across-the-board mandate too quickly could engender adverse public reaction." Id. at 28989.

Secretary Dole found "a number of reasons" not to require air bags, id. at 29000, including: (1) "An air bag alone is less effective" than three point seat belts when used. Id. at 28986; (2) Air bags are costly, and are especially costly to replace. Id. at 29001; (3) Air bags may cause injuries, especially to children. Id. at 28992, 29001; (4) The public fears air bags and may not accept them; (5) Doubts about the efficacy of air bags (particularly in smaller cars). Id. at 28974, 29001; and (6) "(By) restricting the manufacturers (to

air bags), the Department runs the risk of killing or seriously retarding development of more effective, efficient occupant protection systems." Id. at 29001 (emphasis added).

To allay public concerns, Secretary Dole encouraged manufacturers to offer consumers a choice between automatic safety belts and airbags. The Secretary noted that "[i]t may be easier to overcome these [public] concerns if airbags are not the only way of complying with an automatic occupant protection requirement. Under the rule being issued, if people have concerns about airbags, they can purchase automobiles that use automatic belts." 49 Fed. Reg. at 29001.

Despite an attack on the Secretary's rejection of a mandatory airbag standard, the 1984 standard was upheld as a careful balancing of policy interests. See State Farm Mut. Auto. Ins. Co. v. Dole, 802 F.2d 474 (D.C. Cir. 1986), cert. denied, 480 U.S. 951 (1987). The Court approved the Secretary of Transportation's reliance on cost-benefit analysis and concerns about public acceptability (including fears about chemicals used to deploy airbags and the possibility of inadvertent deployment), reasoning that this analysis is "most appropriately entrusted to the expertise of an agency." 802 F.2d at 488.

In the years before the 1987 Honda Accord at issue was manufactured, NHTSA continued to refuse to mandate airbags. The agency denied a petition to reconsider the 1984 regulation, stating "Standard No. 208 does not now require, nor has it ever required, manufacturers to install air bags in their cars...Instead...any restraint system that provides the specified performance may be used to comply with the standard" (52 Fed. Reg. 42440, 42445 [1987]). Another challenge to the rule was rejected the year after this vehicle was manufactured. The agency was held to have reasonably

considered long-term safety effects in its decision. See Public Citizen v. Steed, 851 F.2d 444 (D.C. Cir. 1988).

In the 1987 model year, applicable here, Congress granted the manufacturer three options as to what restraints to install. In this vehicle, Honda chose the federally granted option of lap and shoulder belts with belt warnings. See 49 C.F.R. 571.208, S4.1.2.3. (1987).

On December 18, 1991, Congress enacted the Intermodal Surface Transportation Efficiency Act of 1991 ("ISTEA"). See Pub. L. No. 102-240. Congress directed NHTSA to amend FMVSS 208 to require, for the first time, airbags in 95% of 1997-model automobiles and 100% of 1998-model automobiles. NHTSA's final rule implementing this provision of ISTEA was promulgated in 1993. See 58 Fed. Reg. 46551. Prior to this amendment, NHTSA informed Congress that "most courts that have considered the matter have ruled that [no air bag] claims are preempted by the...Safety Act and/or the safety standards issued by NHTSA." See letter to Congress from NHTSA Administrator Jerry Curry, dated November 7, 1991. Congress responded by specifying that:

> Nothing in this section or in the amendments made under this section to [FMVSS] 208 shall be construed by any court as indicating an intention by Congress to effect, change or modify in any way the liability, if any, of a motor vehicle manufacturer under applicable law relative to vehicles with or without inflatable restraints.
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> Pub. L. No. 102-240 § 2508(d).

The debate over airbag technology and safety continues. In 1997, NHTSA announced the need to implement "a comprehensive plan of rulemaking and other

actions...addressing the adverse effects of airbags." 62 Fed. Reg. 798 (1997). NHTSA also issued a rule allowing manufacturers to depower airbags to address the problem of fatalities and injuries caused by airbags. 62 Fed. Reg. 12960 (1997). In 1998, Congress directed NHTSA to conduct rulemaking to improve airbags and minimize risks from airbag induced injury. Pub. L. 105-178 (1998). NHTSA, thereafter, proposed to require "smart" or "advanced airbags" to reduce potential for injury to different sized or out-of-position occupants. 63 Fed. Reg. 49958 (1998).

REASONS FOR DENYING THE PETITION

A. The District of Columbia Circuit's Ruling is Consistent with the Decisions of Other Federal Circuit Courts

All of the Federal Courts of Appeals that have addressed the FMVSS 208 preemption issue have held that a proposed state common law standard that is not identical to, or conflicts with FMVSS 208 is preempted by the Safety Act. See Geier v. American Honda Motor Co., Inc., 166 F.3d 1236 (D.C. Cir. 1999); Irving v. Mazda Motor Corp., 136 F.3d 764 (11th Cir. 1998); cert. denied, 119 S. Ct. 544 (November 30, 1998); Harris v. Ford Motor Co., 110 F.3d 1410 (9th Cir. 1997); Montag v. Honda Motor Co., 75 F.3d 1414 (10th Cir. 1996), cert. denied, 519 U.S. 814 (1996); Pokorny v. Ford Motor Co., 902 F.2d 1116 (3rd Cir.), cert. denied, 498 U.S. 853 (1990); Kitts v. General Motors Corp., 875 F.2d 787 (10th Cir. 1989), cert. denied, 494 U.S. 1065 (1990); Taylor v. General Motors Corp., 875 F.2d 816 (11th Cir. 1989), cert. denied 494 U.S. 1065 (1990); Wood v. General Motors Corp., 865 F.2d 395 (1st Cir. 1988), cert. denied, 494 U.S. 1065 (1990); see also Gracia v. Volvo Europa Truck, N.V., 112 F.3d 291 (7th Cir. 1997), cert. denied, 118 S. Ct. 697 (1998) [holding non-identical and conflicting state common law standard on windshield

retention strength preempted under FMVSS 212]. In addition, virtually all of the federal district courts have agreed that the Safety Act and FMVSS 208 preempt common law tort claims that a vehicle is defective because it is equipped with one restraint option granted by FMVSS 208, instead of a different FMVSS 208 option.[3]

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[3]. See, e.g. Carlen v. General Motors Corp., No. 3:97-CV 606-R (W.D. Ky. November 13, 1998); Deckle v. General Motors Corp., No. 95-10021-MMP (N.D. Fla. June 5, 1998); Collins v. General Motors Corp., No. JFM-97-401 (D.Md. March 31, 1998); Lejeune v. Wallace, No. 96-1170 (E.D. La. November 12, 1997); Lightsey v. General Motors Corp., 12 F.Supp. 2d 1346 (S.D. Ga. 1997); Folkes v. Volkswagen of America, Inc., No. 94-D-977 (D. Colo. June 11, 1997); King v. Ford Motor Co., No. 95-117 (E.D. Ky April 30, 1997); McMasters v. Ford Motor Co., No. 96-110 (W.D. Pa. March 5, 1997); Schroeder v. General Motors Corp., No. 8: CV-96-591 (D. Neb. February 7, 1997); Brand v. Mazda Motor Co., 978 F.Supp. 1382 (D. Kan. 1997); Copenhaver v. Honda, No. 1: 94-CV-524 (W.D. Mich. February 6, 1997); Courtney v. Mitsubishi Motors Corp., 926 F.Supp. 223 (D. Mass. 1996); Martin v. Ford Motor Co., 914 F.Supp. 1449 (S.D. Tex. 1996); Thomas v. General Motors Corp., No. 2:96 CV 38 (E.D. Tex. December 3, 1996); Marcum v. General Motors Corp., No. 93-40 (E.D. Ky. November 21, 1996); Klugerman v. Nippon Seiko, K.K., No. 94-11900-NG (D. Mass. Nov. 20, 1996); Wiley v. General Motors Corp., No. 96-1692 (JHG) (D.D.C. November 15, 1996); Kaiser v. Fuji Heavy Industries, Ltd., No. 95-B-633 (D. Colo. Sept. 24, 1996); Schuyler v. Volkswagen A.G., No. 4:96 ev25 (E.D. Va. August 28, 1996); Taylor v. General Motors Corp., 1996 WL 671648 (N.D. Miss. Aug. 6, 1996); Waters v. Ford Motor Co., 1996 WL 114791 (E.D. Pa. March 13, 1996); Sieck v. General Motors Corp., 1996 WL 426818 (W.D. Pa. March 5, 1996); Johnson v. General Motors Corp., 889 F. Supp. 451 (W.D. Okla. 1995); Hill v. General Motors Corp., No. 94-AR0088-S (N.D. Ala. November 15, 1995); Beeman v. Lovelace, 1995 WL 813722 (W.D. Okla. November 2, 1995); Tammen v. General Motors Corp., 857 F.Supp. 788 (D. Kan. 1994); Gills v. Ford Motor Co., 829 F.Supp. 894 (W.D. Ky. 1993); Heath v. General Motors Corp., 756 F.Supp. 1144 (S.D. Ind. 1991); Cerniak v. Nissan Motor Co., 1991 WL 147366 (N.D. Ill July 26, 1991), Pak v. Chrysler Motors Corp., 1990 WL 198821 (E.D. Pa. December 3, 1990), aff'd, 941 F.2d 1200 (3rd Cir. 1991); Dallas v. General Motors Corp., 725 F.Supp. 902 (W.D. Tex. 1989); Hunt v. Ford Motor Co., Prod. Liab. Rep. (CCH) ¶ 12,292 (N.D. Ala. March 30, 1989); Kelly v. General Motors Corp., 705 F.Supp. 303 (W.D. La. 1988); Kolbeck v. General Motors Corp., 702 F.Supp. 532

In addition, appellate courts in nine states have found preemption of passive restraint claims.[4] Just recently, the Appellate Court of Illinois in Hilst v. General Motors Corp., 1999 WL 339029 (Ill. App. May 26, 1999), concluded that "the plaintiffs' cause of action would indeed subvert the statutory and regulatory scheme presently in place, and following the Federal Court of Appeals' decisions," including the District of Columbia Circuit Court of Appeals, held that the no-airbag claim is impliedly preempted by federal law. Since the vast majority of cases have held no airbag claims preempted, the small number of state courts

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(E.D. Pa. 1988); Surles v. Ford Motor Co., 709 F.Supp. 732 (N.D. Tex. 1988); Heftel v. General Motors Corp., 1988 WL 19615 (D.D.C. February 23, 1988); Hunter v. General Motors Corp., Prod. Liab. Rep. (CCH) ¶ 12,039 (D. Conn. December 27, 1988); Howard v. American Motors Corp., Prod. Liab. Rep. (CCH) ¶ 11,995 (S.D. Tex. July 26, 1988); Schick v. Chrysler Corp., 675 F.Supp 1183 (D.S.D. 1987); Staggs v. Chrysler Corp., 678 F.Supp. 270 (N.D. Ga. 1987); Hughes v. Ford Motor Co., 677 F. Supp. 76 (D. Conn. 1987); Wattelet v. Toyota Motor Corp., 676 F.Supp. 1039 (D. Mont. 1987; Bass v. General Motors Corp., 1987 WL 54449 (W.D. Tex 1987); Vasquez v. Ford Motor Co., 1986 WL 18670 (D. Ariz. November 18, 1986); Cox v. Baltimore County, 646 F.Supp. 761 (D. Md. 1986); Baird v. General Motors Corp., 654 F.Supp. 28 (N.D. Ohio 1986); Vanover v. Ford Motor Co., 632 F.Supp. 1095 (E.D. Mo. 1986).

[4] Cellucci v. General Motors Corp., 706 A.2d 806 (Pa. 1998); Cooper v. General Motors Corp., 702 So.2d 428 (Miss. 1997); Martinez v. Ford Motor Co., 568 N.W.2d 396 (Mich. App. 1997); Schlotz v. Hyundai Motor Co., 557 N.W.2d 613 (Minn. App. 1997), cert. denied, 118 S. Ct. 80 (1997) [no lap belt claim preempted]; Zimmerman v. Volkswagen of America, Inc., 920 P.2d 67 (Idaho 1996), cert. denied, 520 U.S. 1115 (1997) [no lap belt claim]; Dykema v. Volkswagen A.G., 525 N.W.2d 754 (Wis. App. 1994), cert. denied, 516 U.S. 811 (1995) [no lap belt claim]; Miranda v. Fridman, 647 A.2d 167 (N.J. App. 1994), cert. denied, 649 A.2d 1291 (N.J. 1994) [no lap belt claim]; Boyle v. Chrysler Corp., 501 N.W.2d 865 (Wis. App. 1993), rev. denied, 510 N.W.2d 137 (Wis. 1993); Nissan Motor Corp. v. Superior Court, 212 Cal. App. 3d 980 (1989), cert. denied 494 U.S. 1066 (1990); Wickstrom v. Maplewood Toyota, Inc., 416 N.W.2d 838 (Minn. App. 1987); cert. denied, 487 U.S. 1236 (1988).

that have held to the contrary do not warrant exercise of this Court's discretionary powers. None of these state courts have yet rendered a final decision that would properly invoke this Court's jurisdiction under Jefferson v. City of Tarrant, 522 U.S. 75 (1997).

B. Nothing New Has Occurred Since This Court's Denial of Certiorari Last Year

It is not surprising that this Court has declined to review the FMVSS preemption issue fourteen times, including two cases just last year. See Irving v. Mazda Motor Corp., 136 F.3d 764 (11th Cir. 1998), cert. denied, 119 S. Ct. 544 (1998), Gracia v. Volvo Europa Truck, N.V., 112 F.3d 291 (7th Cir. 1997), cert. denied, 118 S. Ct. 697 (1998).[5] All of the state court cases relied upon by petitioners were decided before this Court's denial of the petition for certiorari in Irving v. Mazda Motor Corp., supra. There is nothing new in the Court of Appeals ruling here that should

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[5] Other cases where this Court has denied a petition for a writ of certiorari also involved the preemptive effect of occupant restraint system options under FMVSS 208. See Schlotz v. Hyundai Motor Co., 557 N.W.2d 613 (Minn. App. 1997), cert. denied, 118 S. Ct. 80 (1997); Zimmerman v. Volkswagen of America, Inc., 920 P.2d 67 (Idaho 1996), cert. denied, 520 U.S. 1115 (1997); Montag v. Honda Motor Co., 75 F.3d 1414 (10th Cir. 1996), cert. denied, 519 U.S. 814 (1996); Tebbets v. Ford Motor Co., 665 A.2d 345 (N.H. 1995), cert. denied, 516 U.S. 1072 (1996); Dykema v. Volkswagen A.C., 525 N.W.2d 754 (Wis. App. 1994), cert. denied, 516 U.S. 811 (1995); Hyundai Motor Co. v. Phillip, 639 So.2d 1064 (Fla. App. 1994), cert. denied, 513 U.S. 1111 (1995); Pokorny v. Ford Motor Co., 902 F.2d 1116 (3rd Cir.), cert. denied, 498 U.S. 853 (1990); Nissan Motor Corp. v. Superior Court (Meier), 212 Cal. App. 3d 980 (1989), cert. denied, 494 U.S. 1066 (1990); Taylor v. General Motors Corp., 875 F.2d 816 (11th Cir. 1989), cert. denied, 494 U.S. 1065 (1990); Kitts v. General Motors Corp., 875 F.2d 787 (10th Cir. 1989), cert. denied, 494 U.S. 1065 (1990); Wood v. General Motors Corp., 865 F.2d 395 (1st Cir. 1988), cert. denied, 494 U.S. 1065 (1990); Wickstrom v. Maplewood Toyota, Inc., 416 N.W.2d 838 (Minn. App. 1987), cert. denied, 487 U.S. 1236 (1990).

cause this Court to reconsider all of its many denials of certiorari. If anything, the Court of Appeals reaffirmed the correct approach in following the other circuits and multitude of district courts on the FMVSS preemption issue.

Ignoring the repeated denials of certiorari, petitioners contend that "the issue of airbag preemption has grown increasingly ripe for review." Pet. at 12. All of the cases relied upon by petitioners, however, predated this Court's most recent denial of certiorari in Irving v. Mazda Motor Corp. Indeed, the most recent appellate decisions on FMVSS preemption, the Court of Appeals decision here and the Appellate Court of Illinois in Hilst v. General Motors Corp., supra, correctly found that petitioners' common law claim would stand as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress and the federal regulatory scheme.

C. Review is Not Warranted Where the Entire FMVSS Preemption Issue is Not Before This Court

The Court of Appeals decided only the implied preemption portion of the total FMVSS preemption issue; the Court did "not resolve whether Geier's claim is expressly preempted." App. 12. Thus, even if this Court disagreed with the Court of Appeals on the implied preemption issue, a remand to the Court of Appeals would be in order to first decide the express preemption issue. This Court ordinarily will not address questions that were not decided below, and were not presented in the petition for certiorari. See Blessing v. Freestone, 520 U.S. 329, 340 (1997); Supreme Court Rule,14.1(a). The parties have not, except in passing, briefed the express preemption sub-issue before this Court. "It is generally more efficient for the Supreme Court to await an appeal from a final judgment which allows the Court to

consider all issues in a single certiorari package." Shapiro, Certiorari Practice: The Supreme Court's Shrinking Docket, 24 No. 3 Litigation 25 (1998).

Honda submits that, if review is ever warranted, this Court should select a better case for review – one that has actually decided both the express and implied components of the FMVSS preemption issue. Review here would not dispose of the entire controversy, and would not meaningfully assist in the development of preemption law.

D. Due to the Change in Federal Law Mandating Airbags, the Issue of FMVSS 208 Preemption is of Diminishing Importance

Petitioners suggest that the FMVSS preemption issue is somehow increasing in importance. We strongly disagree. The ever-evolving nature of FMVSS 208, and the changes in the law as it relates to airbag technology, demonstrate that the claims presented by petitioners will surely fall by the wayside as vehicles manufactured without airbags cease to be driven. Petitioners greatly exaggerate the number of future no-airbag claims. Pet. At 11. All cars manufactured after September 1, 1997 are required to have airbags. App. 3. In addition, numerous manufacturers before that time voluntarily equipped their cars with airbags. Consequently, the number of remaining no-airbag suits has steadily declined during the phase-in period and will continue to do so.

In any event, this Court should not exercise its discretionary powers to render a decision based on a phase-in regulation that has since been replaced with a permanent rule mandating airbags in all vehicles. Where the statute or regulation upon which a controversy rests has been amended in a manner which prevents the problem from arising in the

future, certiorari should be denied. See Robert L. Stern, et al., Supreme Court Practice 172 (7th ed., 1993).[6]

E. The District of Columbia Circuit Correctly Applied Controlling Supreme Court Precedents

Review is also not warranted because the District of Columbia Circuit's decision correctly applied traditional implied preemption analysis. Federal law impliedly preempts state law "to the extent it actually conflicts with federal law." California Federal Sav. & Loan Ass'n. v. Guerra, 479 U.S. 272, 281 (1987); see International Paper Co. v. Ouellette, 479 U.S. 481, 491 (1987). Such conflicts occur where the state law stands "as an obstacle to the accomplishment and execution of the full purposes and objectives of Congress." Hines v. Davidowitz, 312 U.S. 52, 67 (1941); see Chicago & N.W. Transp. Co. v. Kalo Brick & Tile Co. 450 U.S. 311, 317 (1981).

There is an actual conflict if there is a "prospect of interference with the federal regulatory power," Schneidewind v. ANR Pipeline Co., 485 U.S. 293, 310 (1988), or if the state law "interferes with the methods by which the federal statute was designed to reach [its] goals[s]." International Paper Co. v. Ouellette, 479 U.S.

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[6] The decision below is also unsuitable for review because the 1987 Honda Accord at issue was manufactured and sold during the passive restraint phase-in period (1987-1989), when manufacturers had to install passive protection systems in only a percentage of their new cars. Contrary to Petitioner's suggestion (Pet. at 22), the United States did not believe review was warranted for cases involving 1987 phase-in vehicles, but believed that the vehicle should be manufactured after the phase-in period was completed in 1990, before a suitable case might be presented for certiorari. See Brief of the United States as Amicus Curiae, on Petition for Writ Certiorari at 19-20, Wood v. General Motors Corp., 494 U.S. 1065 (1990) (No. 89-46) [recognizing "difficult issues" relating to phase-in vehicles].

481, 494 (1987); Michigan Canners and Freezers Ass'n v. Agricultural Mktg. & Bargaining Bd., 467 U.S. 461, 477 (1984). Authorized regulations of an agency will preempt any state law that conflicts with such regulations or frustrates regulatory purposes. See City of New York v. F.C.C., 486 U.S. 57 (1988); Fidelity Fed. Sav. & Loan Ass'n v. De La Cuesta, 458 U.S. 141, 153 (1982) ["federal regulations have no less preemptive effect than federal statutes"].

Petitioners spend much of their Petition (Pet. 13-20) arguing that this Court's decision in Cipollone v. Liggett Group, Inc., 505 U.S. 504 (1992) radically changed federal preemption law and precludes resort to implied preemption analysis in the face of an express preemption clause. But this Court unanimously rejected this position as "without merit" in Freightliner Corp. v. Myrick, 514 U.S. 280, 287 (1995); see also Medtronic, Inc. v. Lohr, 518 U.S. 470, 503 (1996) [rejecting express preemption argument but stating that tort claim might "be preempted under conflict preemption analysis"]. The Myrick court held that "the fact that an express definition of the preemptive reach of a statute 'implies' - - i.e., supports a reasonable inference - - that Congress did not intend to preempt other matters does not mean that the express clause entirely forecloses any possibility of implied preemption." The Myrick court noted (1) that in Cipollone, "we engaged in a conflict preemption analysis of the Federal Cigarette Labeling and Advertising Act," and (2) "our subsequent decisions have not read Cipollone to obviate the need for analysis of an individual statute's preemptive effects. See, e.g., CSX Transportation, Inc. v. Easterwood, 507 U.S. 658 (1993)." Myrick, 514 U.S. at 288-89. Finally, the Myrick court actually applied the traditional implied preemption test - whether the lawsuit frustrates "the accomplishment and execution of the full purposes and objectives of Congress." Id. Since there was no federal antilock braking standard, there were "no federal objectives or purposes" to undermine. Id. Simply put, in

1996, this Court considered implied preemption under the very same statute. The Court of Appeals could do no less.

Petitioners' contention is further undercut by this Court's decision in Medtronic, Inc. v. Lohr, supra, where the defendant manufactured a pacemaker without any premarket review by the FDA, and needed to comply only with the FDA's general rules regulating manufacturing processes and designs. A majority of this Court held that general FDA regulations applicable to all medical devices, as opposed to FDA regulations specific to a particular device, do not preempt common-law actions because there was no analysis by the federal government about the particular requirement in question. 518 U.S. at 501. However, a majority of this Court signaled that if there is a "substantive requirement for a specific device," there is no need to reach the express preemption issue "if the claim would also be preempted under conflict preemption analysis." 518 U.S. at 503; see also 518 U.S. at 507 (Justice Breyer's concurring opinion citing to "ordinary principles of 'conflict'... preemption").

Nothing in the Cipollone opinion suggests that this Court overruled prior preemption decisions, or charted new ground. It is implausible that the Cipollone court intended to silently repudiate a long line of preemption decisions accepting implied preemption arguments regarding statutes with express preemption clauses. See e.g., Ingersoll-Rand Co. v. McClendon, 498 U.S. 133, 139 (1990); Jones v. Rath Packing Co., 430 U.S. 519, 540 (1977). Indeed, this Court, just six days before Cipollone, found implied preemption notwithstanding the existence of an express preemption clause. See Gade v. National Solid Wastes Management Ass'n, 505 U.S. 88, 104 (1992) ("the implications of the text of the statute evince a congressional intent to preempt non-approved state regulations when a federal standard is in effect").

Subsequent decisions of this Court also demonstrate that there may be implied preemption in federal statutes with express preemption clauses. See CSX Transp. Inc. v. Easterwood, 507 U.S. 658 (1993); John Hancock Mut. Life Ins. Co. v. Harris Trust & Sav. Bank, 510 U.S. 86 (1993).

In sum, the Court of Appeals properly determined that "the tension between §§ 1392(d) and 1397(k) prevents the identification of any 'express definition' of the reach of preemption in the Safety Act"; therefore "Cipollone does not bar this Court from considering Honda's implied preemption argument." App. 13.

F. A Common Law Rule Requiring Airbags in 1987 Vehicles Would Destroy The Options and Flexibility at the Heart of FMVSS 208

The Court of Appeals rightfully recognized that the effect of allowing petitioners' no-airbag claim to proceed would "frustrate the Department's policy of encouraging both public acceptance of the airbag technology and experimentation with better passive restraint systems". App. 15. The Court analyzed the regulatory history, and noted that "a performance standard making airbags one of several options car manufacturers could choose to comply with the passive restraint requirements of standard 208, rather than mandating specific use of one safety device, would advance public safety in two respects, by allowing consumers to adjust to the new technology and by permitting experimentation with designs for even safer systems. 49 Fed. Reg. at 28,988, 28,997." App. 15.

The District of Columbia Circuit, of course, is uniquely experienced in the analysis of federal regulatory schemes both in general and in the particular context of FMVSS 208. See e.g. Motor Vehicle Mfrs. Ass'n. of the

United States, Inc. v. State Farm Mut. Auto. Ins. Co., 463 U.S. 29 (1983); State Farm Mut. Auto. Ins. Co. v. Dole, 802 F.2d 474 (D.C. Cir. 1986), cert, denied, 480 U.S. 951 (1987); Public Citizen v. Steed, 851 F.2d 444 (D.C. Cir. 1988) [opinion by then Circuit Judge Ruth Bader Ginsburg].

Petitioners' asserted common law standard takes away the federally mandated options and flexibility. See Pokorny v. Ford Motor Co., 902 F.2d 1116 (3rd Cir. 1990). In Pokorny, the Third Circuit held that allowing plaintiff to assert a no-airbag claim "frustrates the goals of the federal regulatory framework and undermines the flexibility that Congress and the Department of Transportation intended to give to automobile manufacturers in this area." The Eleventh Circuit in Taylor v. General Motors Corp., 875 F.2d 816, 827 (11th Cir. 1989) similarly noted that, if no-airbag claims are allowed, this would "remove the element of choice authorized in Safety Standard 208," would "take away the flexibility provided by a federal regulation" and would thus "frustrate the regulatory scheme."

Moreover, the District of Columbia's decision is in harmony with a number of this Court's decisions on preemption. See, e.g., American Tel. and Tel. Co. v. Central Office Tel. Inc., 524 U.S. 214 (1998) [preempting state law claims that sought to bar activity authorized by federal statute]; Barnett Bank of Marion County v. Nelson, 517 U.S. 25 (1996) [preempting state law that prohibited activity expressly permitted by federal statute]; CSX Transp. Inc. v. Easterwood, 507 U.S. 658 (1993) [holding common law standard based on train speed specifically permitted by an applicable federal standard was preempted]; Fidelity Fed. Sav. And Loan Ass'n v. de la Cuesta, 458 U.S. 141, 156 (1982) [finding preemption of common law claim seeking to prohibit use of due-on-sale clause explicitly permitted by federal statute]; Chicago and N.W. Transp. Co. v. Kalo Brick & Tile Co., 450 U.S. 311, 325-26 (1981) [holding that a state

could not use "the threat of damages" to prevent the defendant from doing that which the federal agency specifically allowed under its duly-delegated authority].

G. Section 1397(k) of the Safety Act Does Not Preserve Preempted State Claims

Petitioners argue that there can be no preemption of any common law claim because of § 1397(k), which petitioners mischaracterize as an "anti-preemption provision." Pet. at 25. In fact, § 1397(k): (1) never mentions the word "preemption," (2) never addresses the preemption clause, and (3) is located several sections apart from the preemption clause. While respondents have no quarrel with the rule that words in a statute should be given their plain and ordinary meaning, petitioners' discussion of an "anti-preemption provision" goes well beyond the actual words of the statute.

Section 1397(k) provides:

> Compliance with any federal motor vehicle safety standard issued under this subchapter does not exempt any person from any liability under common law.

Several factors indicate that § 1397(k) was not intended to be a provision that relates to the issue of preemption. The Court of Appeals cited Harris v. Ford Motor Co., 110 F.3d 1410, 1415 (9th Cir. 1997) for the proposition that "the most reasonable and plausible reading of § 1397(k) ... is that compliance with federal standards does not exempt anyone from liability that the states have authority to impose." § 1397(k) merely negates the availability of compliance with all government standards as an affirmative defense to common law actions. See Gracia v. Volvo Europa Truck, N.V., 112 F.3d 291, 298 (7th Cir. 1997); see also Wood v. General Motors Corp., 865 F.2d

395, 417 (1st Cir. 1988) [compliance is not a complete defense "on the merits of a defective design claim"].

The narrow language of § 1397(k) - "compliance with any federal motor vehicle safety standard" - is much narrower than the two exceptions incorporated into Section 1392(d), which are true savings clauses. Each of these two savings clauses (for enforcement of identical state standards and for vehicles bought for the state's own use) begin with the clear traditional savings language, "Nothing in this section shall be construed." The two savings clauses in 1392(d) state:

> Nothing in this section shall be construed as preventing any State from enforcing any safety standard which is identical to a Federal safety standard. Nothing in this section shall be construed to prevent the Federal Government or the government of any State or political subdivision thereof from establishing a safety requirement applicable to motor vehicles or motor vehicle equipment procured for its own use of such requirement imposes a higher standard of performance than that required to comply with the otherwise applicable Federal standard (emphasis added).

True savings clauses use broader language, not the narrow "compliance with" language of § 1397(k). See Wood v. General Motors Corp., supra. 865 F.2d at 401, n. 8, 417-18.[7] Moreover, as this Court has recognized, "the

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[7] See, e.g., John Hancock Mut. Life Ins. Co. v. Harris Trust & Sav. Bank, 510 U.S. 86 (1993) [interpreting savings clause of Employee Retirement Income Security Act, 29 U.S.C. § 1144(b)(2)(A), which states that the statute "shall not be construed to exempt or relieve any person from any law of any state which regulates insurance banking, or

evidence of preemptive purpose is sought in the text and structure of the statute at issue." CSX Transp., Inc. v. Easterwood, 507 U.S. 658 (1993). Here, § 1397(k) appears a full five sections after 1392(d), evidence it was not intended to address preemption. § 1392(d) is entitled "Supremacy of Federal Standards." §1397(k) makes no reference to the Supremacy Clause. This further reinforces the conclusion that 1397(k) was never intended to create a sweeping exception to Section 1392(d).

Moreover, the legislative history demonstrates that the purpose of § 1397(k) was only to negate the evidentiary defense of compliance with federal standards ["compliance with federal standards may be offered in any proceeding for such relevance and weight as courts and juries may give it"] (112 Cong. Rec. at 21,490); ["This provision does not prevent any person from introducing in a lawsuit evidence of compliance or non-compliance with federal standards. No court rules of evidence are intended to be altered by this provision"] (112 Cong. Rec. at 21,487). Compliance as a defense on the merits, of course, is entirely different from preemption. See Wood v. General Motors Corp., supra, 865 F.2d at 417. Moreover, the legislative history does not speak to conflict preemption, and does not "specifically address the status of conflicting design standards established through the mechanism of common law suits." See Wood v. General Motors Corp., supra, 865 F.2d at 406. If anything, the

securities"]; Morales v. Trans World Airlines, Inc., 504 U.S. 374, 378 (1992) [interpreting savings clause of Federal Aviation Act of 1958, 49 U.S.C. § 1506, which states, "nothing...in this chapter shall in any way abridge or alter the remedies now existing as common law or by statute, but the provisions of the chapter are in addition to such remedies"]; Cipollone v. Liggett Group, Inc., 505 U.S. at 518 (1992) [referring to savings clause of Comprehensive Smokeless Tobacco Health Education Act of 1986, 15 U.S.C. § 4406(c), which states, "nothing in this Act shall relieve any person from any liability, under common law or under state statutory law, to any other person"].

legislative history stresses the need for uniformity of standards. See, e.g., 112 Cong. Rec. at 14253 (conflicting standards would be "chaotic") [remarks of President Johnson].

There is an "important distinction" between federal preemption and "the question of whether and to what extent, as a matter of state tort law, compliance with product safety statutes or administrative regulations affects liability for product defectiveness." See Restatement (Third) of Torts: Products Liability, § 4, cmt. e (Proposed Final Draft 1997). The legislative history's reference to "evidence" and "relevance" establishes that the States will have the flexibility to determine whether a party's compliance with pertinent federal requirements can serve as the basis for an affirmative defense under state law. In practice, the States have differed on this issue of state law.[8]

In any event, even if § 1397(k) is deemed to be a true savings clause, a century of cases from this Court makes clear that even a broad savings clause cannot save state law that directly conflicts with federal law. As this Court recognized: an act "cannot in reason be construed as continuing...a common law right, the continued existence of which would be absolutely inconsistent with the provisions

[8] Some states recognize a rebuttable presumption that a product complying with federal standards is not defective. See, e.g. Mich. Comp. L. Ann § 600.2946(4) (West 1997); Kan. Stat. Ann. § 60-3304(a) (1996). Others hold compliance with federal standards is relevant to whether there is a defect, but not conclusive or presumptive evidence. E.g., Wagner v. Clark Equip. Co., 700 A.2d 38, 49-50 (Conn. 1997); Brooks v. Beech Aircraft Corp., 902 P.2d 54, 63 (N.M. 1996). A few States hold that compliance conclusively negates any defect, see, e.g., Beatty v. Trailmaster Prods, 625 A.2d 1005, 1013-14 (Md. 1993), while others treat compliance as irrelevant and inadmissible, see, e.g., Sheehan v. Cincinnati Shaper Co., 555 A.2d 1352, 1355 (Pa. Super. 1989). § 1397(k) was enacted because Congress decided that the states should continue to maintain diverse views on this issue.

of the act"; an act "cannot be read to destroy itself." Texas & Pacific Ry. v. Abilene Cotton Oil Co., 204 U.S. 426, 446 (1907). That principle stands to this day. See American Tel. And Tel. Co. v. Central Office Tel. Inc., 524 U.S. 214, 1965 (1998); Morales v. Trans World Airlines, Inc., 504 U.S. 374, 383 (1992); Chicago N.W. Transp. Co. v. Kalo Brick & Tile Co., 450 U.S. 311, 328-31 (1981).

Thus, the Circuit Courts of Appeals have agreed that "[g]eneral savings clauses may not be read literally to permit common law actions that contradict and subvert a statutory scheme." Wood v. General Motors Corp., supra., 865 F.2d at 415; see also Taylor v. General Motors Corp., supra, 875 F.2d at 827 n.20 [a "general savings clause, such as that contained in the Safety Act, does not "foreclose a finding of implied preemption"]; Pokorny v. Ford Motor Co., supra, 902 F.2d at 1125 ["it is well-established that a savings clause like § 1397(k) does not 'save' common law actions that would subvert a federal statutory or regulatory scheme"]; see also Miranda v. Fridman, 647 A.2d 167, 174 (N.J. App. Div. 1994) ["[I]t demeans Congress to conclude" that it "purposely wrote the savings clause to tear down the barrier against inconsistent state regulation that the preemption clause was written to erect"].

In sum, the Court of Appeals correctly determined that a statute should not be interpreted to destroy itself, or to strip itself of its intended efficacy.

CONCLUSION

The Petition for a writ of certiorari should be denied.

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Respectfully submitted,

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